TSITSI MOLLY MUPFUNYA CHIWANDAMIRA
versus
FRANCIS DONGO

HIGH COURT OF ZIMBABWE
MHURI J
HARARE; 25 February 2025, 14 April 2025 & 24 February 2026

Opposed Application

L Madhuku, for the applicant
T Maanda, for the respondent

MHURI J: On 25 February 2025 placed before me were two applications for consideration. These were; 1.an application for rescission of an order issued on 9 October 2024 HCH3938/24 and 2, an application for setting aside the arbitral award HCH4639/24.By consent of the parties Legal Practitioners I dealt with the first application in which the parties made submissions on both the points *in limine*, as raised by the respondent and on the merits. I reserved judgment on the points in limine and indicated that the decision on the points in limine will inform whether I will have to delve into the merits of the application or not, and that pending the outcome of the points in limine HCH4639/24 is held in abeyance pending determination of HCH4808/24.I issued my judgment in HCH4808/24 on 14 April 2025 upholding the points *in limine*. My judgment was taken on appeal and the Supreme Court ordered that the matter be heard on the merits. Since I had heard submissions on the merits, Respondent's Legal Practitioners through a letter dated 23 October 2025, requested that I write a judgment on the merits.

This is the judgement. This is an application for rescission of a default judgment in terms of r 27(2) of the High Court Rules, 2021 in which an arbitral award was registered on 9 October 2024 under Case Number HCH 3938/24. The applicant seeks an order in the following terms:

> "1. The application be and is hereby granted.
> 2.The arbitral award of the second respondent granted on 6 August 2024 be and is hereby set aside.
> 3.The respondent to pay costs of suit if they are opposed to the application."

The facts giving rise to this application are that applicant and respondent entered into a partnership agreement sometime in 2012. The partnership was to run Milestone Preparatory School and College. The partnership agreement conferred obligations on the partners for the partnership business to exist. After sometime, respondent abandoned the partnership business and compelled the disclosure of partnership information from the applicant. A dispute was referred to arbitration by the respondent resulting in an award by consent on 6 August 2024.

The arbitration award was later registered (in default) by this Court on 9 October 2024 before MUSITHU J. It is this default judgment which the applicant seeks to be rescinded.

In motivating the application, applicant submitted that she was never served with the papers for the application, instead the papers were served on her erstwhile Legal Practitioners(Jiti Law Chambers).She argued that the error was caused by an assumption that the Legal Practitioners who had represented her in the arbitration were still representing her, whereas in the circumstances the documents were supposed to be served on the applicant's *domicilum citandi*. The applicant would not have ignored the service of same since the matter is important to her. There was need for proper service to be effected since the proceedings for registration of the arbitral award were fresh proceedings. Addressing the court on the prospects of success, applicant contended that the setting aside of an arbitral award is difficult under Zimbabwean law. *Mr Madhuku* argued that the arbitrator went on a frolic and ignored that respondent (in the arbitration matter) was no longer part of the partnership. It was applicant's submission that the award that seeks to be set aside is against public policy hence an application to set it aside has been made.

The respondent submitted that there is no good and sufficient cause shown to warrant rescission. It was *Mr Maanda*'s submission that the Legal Practitioner who was representing the applicant in the arbitration proceedings was Jiti Law Chambers and since the application was for registration of that arbitral award there was no need to serve the applicant in person because she was still legally represented by Jiti Law Chambers. Respondent argued that applicant's Legal Practitioners were supposed to file an affidavit explaining what they did with the application (for registration of the arbitral award). Without such an explanation there is no basis for granting the application. It was respondent's submission that the award was an order by consent by the parties, therefore the arbitrator was not tasked to make any findings which the applicant now contends are against public policy. The respondent prayed for the dismissal of the application.

The application is made in terms of r 27(2) of the High Court Rules, 2021 which provides that:

> "(2)If the court is satisfied on an application in terms of subrule (1) that there is good and sufficient cause to do so, the court may set aside the judgment concerned and give leave to the defendant to defend or to the plaintiff to prosecute the action, on such terms as to costs and otherwise as the court considers just."

The issues for determination in an application for rescission were highlighted in the case of *Makoni* v *CBZ Bank Limited* HH357/16 at p 2 wherein it was held that:

> "What emerges from the plethora of cases is that the phrase 'good and sufficient cause' has been interpreted to mean that for one to succeed in an application for rescission of judgement one must satisfy the following factors:
> (i) the explanation for the reason for the default must be reasonable;
> (ii) the bona fide of the application to rescind the judgement;
> (iii) The bona fide of the defence on the merits of the case which has some prospects of success."

The term, 'good and sufficient cause' has been explained in a plethora of case law. In the case of *Rydale Ridge Park (Pvt) Ltd* v *Muridzo N.O* SC 17/23 at para 20, the Supreme Court aptly delved into the explanation of what a court must consider when determining whether or not there is a good and sufficient cause to set aside a default judgment as follows:

The requirements for the setting aside of a judgment granted in default have been enunciated in numerous case authorities including *Zinondo v CAFCA Limited* SC 64/17 where at p 4 of the judgment, the Court stated:

> "In an application for rescission of a default judgment the court must be satisfied that there is good and sufficient cause to rescind the order. In Makoni v CBZ Bank Limited HH-357-16, CHITAKUNYE J quoted the case of *Stockil* v *Griffiths* 1992 (1) ZLR 172 (S) at 173D-F wherein GUBBAY CJ aptly noted that: -
> 'The factors which a court will take into account in determining whether an applicant for rescission has discharged the onus of proving "good and sufficient cause", as required to be shown by Rule 63 of the High Court of Zimbabwe Rules 1971, are well established. They have been discussed and applied in many decided cases in this country. See for instance, Barclays Bank of Zimbabwe Ltd v CC International (Pvt) Ltd S-16-86 (not reported); Roland and Another v McDonnell 1986 (2) ZLR 216(S) at 226E-H; Songore v Olivine Industries (Pvt) Ltd 1988(2) ZLR 210(S) at 211C-F. They are: (i) the reasonableness of the applicant's explanation for the default; (ii) the *bona fides* of the application to rescind the judgement; and (iii) the *bona fides* of the defence on the merits of the case which carries some prospect of success. These factors must be considered not only individually but in conjunction with one another and with the application as a whole."

The requirements for an application of rescission were alluded to in *Croco Properties (Pvt) Ltd* v *Swift Debt Collectors (Pvt) Ltd t/a Ruby Auctions* 2013 (2) ZLR 79 (H) at 83 F – G, 84 MANTHOSI J (as he then was) put the position as follows:

> "In the exercise of its wide discretion whether to grant an indulgence to an applicant for rescission of judgment, the court has regard to essentially three factors, namely the reasonableness of the explanation for default, the bona fides of the application and the bona fides of the defence on the merits which prima facie carries some prospect of success… All these factors must be considered in conjunction with each other and with the application as a whole. An unsatisfactory explanation for one may, in fact, be strengthened by a very strong defence on the merits. *Georgias* and *Another* v *Standard Chartered Finance Zimbabwe Ltd* 1998 (2) ZLR 488 (S) at 493 *C, du Preez*, v *Hughes N.O* 1957 R & N 706 SR at 709 A – F. The applicant must show what entitles him to an indulgence."

In *casu*, the court has to determine whether or not the applicant was in wilful default when she failed to attend the court session for the registration of the arbitral award leading to the default judgment.Wilful default was described in the case of *Zimbabwe Banking Corporation Ltd* v *Masendeke* 1995 (2) ZLR 400 (SC) in the following terms:

> "Wilful default occurs when a party with the full knowledge of the service of set down of the matter, and the risk attendant upon default takes the decision to refrain from appearing."

The explanation given by the applicant for the default judgement was that she was not served with the application for registration of the arbitral award. She avers that the application was served on the Legal Practioner's of Milestone School which Legal Practioners do not represent her. From the record during the arbitration proceedings the applicant and Milestone School were represented by Jiti Law Chambers.It is the same Legal Practitioners who were served with the application for registration of the arbitral award and did not appear on the date of hearing. There was no renunciation of urgency from Jiti Law Chambers to show that they were no longer representing the applicant in these proceedings, instead they accepted service. I find the applicant's explanation unsatisfactory. It is for the foregoing that I find that the applicant had full knowledge of the application for registration of the arbitral award and the set down date but refrained from appearing to defend the matter. With that, I find that there was wilful default by the applicant.

The next issue that exercised my mind was whether the applicant has established that he has a *bona fide* defence to the claim with prospects of success in the main matter. The applicant seeks rescission of a default judgment (judgment for registration of an arbitral award) which if granted will allow her to pursue an application for the setting aside of an arbitral award. It is common cause that the arbitral award was granted by consent of all the parties and in those proceedings, applicant was represented by Mr *L Bwanya* of Jiti Law Chambers, this is evidence on the record. The applicant consented to the claim and the award

which she now seeks to set aside. Her main basis being that the award is unenforceable since it only relates to Milestone School. I am unconvinced by applicant's submissions that the arbitral award is unenforceable against her considering that she is a partner at Milestone School and the school is an alter ego(which school was deemed to have been wrongly cited by the Arbitrator).I share the sentiments held in *Makoni* case (supra) at p 6 that:

> "In order for a defence to be *bona fide* and to carry some prospects of success it must be credible *ex facie*. A defence based on misrepresentation of facts may not be such a defence."

In *casu,* applicant seeks to set aside an arbitral award granted by consent. In her founding affidavit on para 4 she states that she consented to a wrong claim hence she has brought the present application. I am not convinced by applicant's submission. It is for the foregoing that I find that the applicant's prospects of success in HCH4639/24 are dim hence limiting the chances of granting the present application.

There must be finality to litigation. The applicant consented to an arbitral award, wilfully defaulted attending court for registration of same. Resultantly, I order as follows:

The application be and is hereby dismissed with costs.

MHURI J……..

Chiturumani Law Chambers, Applicant's Legal Practitioners
Maunga Maanda & Associates, Respondent's Legal Practitioners